

SENATE BILL 2362

By Massey

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 8; Title 9; Title 33; Title 37 and Title 52,
relative to children with certain disabilities.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 37, Chapter 5, Part 1, is amended by adding the following as a new section:

(a) The department shall enter into an interagency agreement with the department of disability and aging (DDA) to leverage DDA's expertise in providing services and oversight for children in state custody or at risk of coming into state custody who have intellectual or developmental disabilities (I/DD). The department shall implement recommendations from DDA on the following:

(1) Service evaluation for children in or at risk of coming into state custody. As used in this subdivision (a)(1), "service evaluation" means evaluating a child's needs for I/DD services and also evaluating the appropriateness, effectiveness, and quality of I/DD services being received by a child in or at risk of coming into state custody. The department shall ensure that children with I/DD or suspected I/DD, in or at risk of coming into state custody, are referred to DDA. The referral must include any information indicating suspicion that a child may have I/DD made by appropriately qualified professionals. DDA or their contracted entity will evaluate the child to determine if the child has an I/DD and make recommendations as to appropriate services and supports;

(2) Placement for children with I/DD in or at risk of coming into state custody. DDA will use their expertise to identify the most appropriate placement setting for each child with I/DD. The department shall implement the placement recommendation from DDA for each child placed, and the department shall implement I/DD service definitions, as established in collaboration with DDA, in all settings serving children with I/DD;

(3) Oversight of placements for children with I/DD. DDA will maintain oversight of the placement and the quality and effectiveness of the I/DD services being provided. DDA shall ensure individualized support plans are implemented for each child and that provider staff are appropriately trained on those individual support plans. Oversight of placement must include, but not be limited to, the development and implementation of quality oversight tools and processes, including a yearly quality management survey and conducting joint investigations of allegations of abuse, neglect, or exploitation of a child and ensuring accountability for providers when there is a substantiated investigation;

(4) Training for department of children's services staff and providers working with children who have I/DD. Within this interagency agreement, DDA shall develop and establish training for department of children's services staff in identifying and supporting a child that may have an I/DD. DDA shall also develop and establish training requirements for provider staff working with a child with I/DD; and

(5) Disability-specific care coordination for the purpose of ensuring that children with I/DD in state custody are assigned to a DDA care coordinator or DDA-contracted entity who works alongside the forensic social worker to coordinate disability-specific supports and services.

(b) The department shall submit a report outlining the department's compliance with subsection (a) by January 1, 2027, and annually thereafter to the chair of the senate judiciary committee, the chair of the senate health and welfare committee, the chairs of the joint government operations committee, the chair of the committee of the house of representatives having subject matter jurisdiction over civil matters, and the chair of the committee of the house of representatives having subject matter jurisdiction over health matters. The report must include:

- (1) The number of children referred by the department to DDA;
- (2) The number of children evaluated by DDA;
- (3) The placement and levels of service definition of placement for children with DDA, and any gaps or delays in placement;
- (4) Reports on oversight of placement, including a summary of findings from the yearly quality management survey, a summary of any investigations of placements for abuse, neglect, or exploitation of a child, and corrective actions taken to ensure accountability;
- (5) The status of training as outlined in subdivision (a)(4); and
- (6) The status of care coordination services as outlined in subdivision (a)(5).

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.